

Licensing Software in the Open



Possession is
nine-tenths of the law.

"Open Source" per the Open Source Initiative

- Distribution* of new licenses must be free.
- Source* must be available*.
- Licenses must be distributed without discrimination.
- License must be explicit in how modifications* can be made.

Open Source License Comparison

License	Copyleft (Reciprocity)	Network Distribution	Patent Grants	Attribution & Endorsement
MIT License	Permissive: Code can be closed and monetized with zero restrictions.	Standard: SaaS usage does not trigger source sharing.	Implicit: Relies purely on copyright law.	Standard: Keep original copyright notices intact.
Apache License v2	Permissive: Can be absorbed into closed-source products.	Standard: SaaS usage does not trigger source sharing.	Explicit & Retaliatory: Instantly revokes license if user sues for patent infringement.	Standard: Must also retain external "NOTICE" files if provided.
Mozilla Public (MPL)	Weak (File-level): Modified MPL files must remain open, but can be mixed with proprietary files.	Standard: SaaS usage does not trigger source sharing.	Explicit: Grants patent rights to users for the contributed code.	Standard: Keep original copyright notices intact.
LGPLv3	Weak (Library-level): The library itself must remain open, but proprietary code can dynamically link.	Standard: SaaS usage does not trigger source sharing.	Explicit & Retaliatory: Inherits robust patent protections from the GPL framework.	Standard: Keep original copyright notices intact.
GPLv3	Strong: The entire derivative software program must inherit the GPLv3 license.	Standard: SaaS usage does not trigger source sharing.	Explicit & Retaliatory: Protects users against patent trolls.	Standard: Keep original copyright notices intact.
AGPLv3	Strong: The entire derivative software program must inherit the AGPL license.	Network Copyleft: SaaS/cloud interaction triggers source sharing to remote users.	Explicit & Retaliatory: Protects users against patent trolls using GPLv3 framework.	Standard: Keep original copyright notices intact.

Case Study

Tandemn Labs

